

M/S Ananya Enterprises v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 4 October 2023 · 2023:AHC:191051-DB · Writ C No. 32166 of 2023 · **Writ disposed; Clause 6.5 application to be processed on merits**

HEADNOTE

Writ to quash the bill dated 21.08.2023 and to restrain coercive recovery was disposed of without entering the merits. Clause 6.5 of the U.P. Electricity Supply Code, 2005 was treated as an efficacious remedy, and the competent authority must process any application filed under that clause on merits.

FACTUAL SUMMARY

M/S Ananya Enterprises, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., filed a writ to quash the bill dated 21 August 2023 issued by respondent no. 2, to restrain coercive recovery on that bill, and to direct a corrected bill. On 20 September 2023 no one appeared for the petitioner; the Division Bench adjourned the matter to be listed afresh and declined to treat it as tied to that Bench. On 4 October 2023 counsel for both sides were heard on the disputed bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill — alternate remedy

HOLDING

A writ seeking quashing of a disputed electricity bill and a restraint on coercive recovery is disposed of without examination of the merits, Clause 6.5 of the U.P. Electricity Supply Code, 2005 being an efficacious remedy. If the consumer files an application under that clause, the competent authority must process it on merits. ¶ 3-5

PRINCIPLE TAGS

article-226-alternate-remedy-up-supply-code-6.5 The writ challenging the 21.08.2023 bill was disposed without merits because Clause 6.5 was accepted as an efficacious remedy; any application filed under it is to be processed on merits by the competent authority. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 21.08.2023 AND COERCIVE RECOVERY ON IT

Left to the competent authority if a Clause 6.5 application is filed; the writ was disposed without adverting to the merits. ¶ 5